

23STCV05839 23STCV05839

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-16

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Tentative Ruling

Blackburn v. 4600 Sunset Boulevard,

Case no. 23STCV05839

Hearing date September 16, 2026

Defendant Black Shadow III's Motion

for Summary Judgment on the Complaint - UNOPPOSED

Cross-Defendants'

Motion for Summary Judgment on the Cross-Complaint - UNOPPOSED

Plaintiff

Blackburn sues defendants 4600 Sunset Boulevard, Inc., Fuentes, Black Shadow

III ("BS3"), Derian and Rhino's Executive. Plaintiff alleges she was entering a club where BS3 and Wilson were contracted to provide security, was pepper-sprayed by Fuentes, causing her to enter the street, where she was struck by a vehicle.

Derian and 4600 Sunset cross-complaint against BS3 and its principal Wilson for indemnity. BS3 moves for summary judgment on the complaint. BS3 and Wilson move for summary judgment on the cross-complaint. Both are unopposed.

A

motion for summary judgement must be granted if no triable issue of material fact exists as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar.

5, 2002. A defendant can do so by showing plaintiff cannot establish one or more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Defendant Black Shadow III's Motion for Summary
Judgment on the Complaint

Plaintiff

brings a cause of action against BS3 for negligence. BS3 argues plaintiff cannot establish the essential element of duty, an essential element of any negligence-based claim. See Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.

BS3

did not employ, supervise, control or direct Fuentes. SSMF 1, 8-10. BS3 did not contract to provide security services at the premises. SSMF 1-6, 11-18. BS3 did not provide security services at the premises. SSMF 19-24. BS3 had no involvement in the subject incident. SSMF 31-40.

Plaintiff

admitted in discovery that BS3 had no control over Fuentes. SSMF 10. 4600 Sunset Boulevard and Deria admitted in discovery that BS3 did not provide security services and had no employees or agents present during the incident. SSMF 19-38. This is sufficient to shift the burden of proof to plaintiff to show a triable issue of fact as to duty. As the motion is unopposed, plaintiff cannot meet her burden of proving a disputed issue of material fact. GRANTED.

Cross-Defendants' Motion for Summary Judgment on the
Cross-Complaint

Derian

and 4600 Sunset Boulevard bring three causes of action against BS3 and Wilson for equitable indemnity, apportionment and declaratory relief. Moving cross-defendants argue cross-complainants cannot establish the necessary elements of duty or liability. A fundamental prerequisite to a claim for equitable indemnity, comparative indemnity, contribution, or declaratory relief is existence of an underlying legal duty and potential liability owed by the proposed indemnitor to the injured plaintiff. Western Steamship Lines, Inc.

v. San Pedro Peninsula Hospital (1994) 8 Cal.4th 100, 114.

The

court's tentative ruling is to grant summary judgment in BS3's favor on the sole cause of action alleged by plaintiff against BS3. Thus, there can be no finding of liability against BS3 as to plaintiff, precluding derivative indemnity or declaratory relief claims. *Western Steamship Lines, Inc.*, supra.

As Wilson's alleged liability for indemnity arises from their role as BS3 manager or member, there can be no finding of liability against Wilson. See Corp. Code §17703.04.

Separately,

cross-complainants admit in verified discovery responses that cross-defendants had no written or oral contract to provide security at the premises and did not have employees or agents present at the time of the incident. SSMF 1-7. Derian and 4600 Sunset Boulevard each produced RFA responses admitting no contracts between cross-complainants and cross-defendants for security services existed, no payment for services occurred and no services were provided. SSMF 11-28.

Cross-complainants

admitted they possessed no evidence showing a duty or responsibilities assumed by cross-defendants. SSMF 25-30. This is sufficient to shift the burden to cross-complainants to show a triable issue of fact as to duty or as to liability. See Code Civ. Proc. §437c(p)(2). As the motion is unopposed, cross-complainants cannot meet their burden of proving a disputed issue of material fact. GRANTED.